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12.4 Workers' ID and Rights

Focus Questions:

- *When should international students apply for their SSN?*
- *How much do international students have to be paid per hour?*
- *Which employee rights and benefits are mandated by US law?*
- *Do international students who earn income in the US have to pay US taxes?*

Social Security Number (SSN)

Once the international student has been approved for employment in the US and starts working, they need a Social Security Number (SSN). Students should wait until they are in the US for at least 10 days and have reported to their educational institution, before applying for an SSN.

Students can visit their local Social Security Administration (SSA) office to apply for an SSN. The [Social Security Office Locator](#) will help to find the nearest office.

More information is available on the [Social Security website](#).

Workers' Rights and Benefit

International students should be aware of their rights and benefits while working in the US.

US laws prohibit employers from discriminating against job seekers and employees because of their gender, race, country of origin, color, religion, or disability.

Workers have the right to be treated and paid fairly. International students should ensure they are paid at least the federal legal minimum wage, which is currently \$7.25 per hour. If the minimum wage is higher in the state in which they work, they should be paid the higher amount. Employers are responsible for ensuring that the workplace is healthy and safe.

Some types of employee rights and benefits, such as minimum wage, overtime, leave under the Family Medical Leave Act, unemployment, and workers compensation and disability, are mandated under US law.

Other types of benefits, such as hazard pay, health care, maternity leave, and paid holidays, are not mandated by US law. They are provided at the discretion of the employer and will vary from job to job.

Deductions and Taxes

A student's employer will deduct money from their paycheck for income tax, Social Security, and Medicare taxes. This is legal and done at all employers.

International students who earn income in the US must file a tax return with the Internal Revenue Service (IRS) by April 15 of the following year. For more information, go to www.irs.gov.

General Tips

International students should:

- Not work for any employer without signing a contract. Without this proof of employment, their rights may be severely reduced if anything goes wrong.
- Always ask for pay stubs (a record of hours worked as well as taxes deducted and net pay) and keep them together in a safe place.
- Check their pay stubs to ensure that their employer is deducting the necessary taxes from their pay. Not deducting taxes is illegal.
- Not accept any "under the table" jobs where they are paid in cash and not registered as official employees. The US government takes working illegally very seriously. An international student caught working without permission may have to leave the US and not be allowed to return.
- Not rely on earning extra money after their arrival in the US. Because the visa regulations regarding international student employment are fairly

restrictive, international students should plan their finances carefully and come prepared to meet their expenses without the need to work.

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